

OBJECTION TO RELOCATION FORM

Two (2) versions of this form are available: a print friendly version in PDF format and a web friendly version.

1. **Print friendly in PDF format:** You can use the PDF version if you want to be able to save your progress on your own computer as you go.

Once you save it on your computer, you can go back to the document as many times as you want to make changes. You can print it later when you are ready.

You can also print a blank form and fill it in by hand.

2. **Web friendly version:** You can use this version if you want to complete the form on the web page and print it out right away. The web version may also be used by those requiring support from a screen reader.

Important notes:

- **You cannot save information in the web version and come back to it later.** The Department of Justice does not collect or keep any of this information.
- **If you close your browser tab or your browser before printing it, your information will be lost.**

Instructions for using this form

The *Divorce Act* has rules about moves involving children. When you have a court order under the *Divorce Act* for parenting responsibilities for a child (which means that you have an order giving you custody, access, parenting time or decision-making), you can object to someone else's plan to relocate your child.

If you have received a Notice of Relocation about the proposed relocation of your child and you do not agree with the plan, you can use this form to object to the relocation.

For more information about relocations, including how to object to a proposed relocation, please consult the Fact sheet: [Moving after separation or divorce](#).

INSTRUCTIONS:

Important note: Under the *Divorce Act*, parents must try to work out issues involving their children, including a child's possible relocation, by using out-of-court [family dispute resolution](#) processes such as negotiation and mediation, unless it would not be appropriate. It is generally better for parents to come up with their own solution, as they know your children best. A judge may make a decision that one or both parents do not like. Even if one parent objects to the relocation, it is important to keep trying to come to an agreement, where appropriate.

1. You can object to a proposed relocation of your child(ren) if you have a *Divorce Act* order giving you parenting responsibilities (custody, access, parenting time or decision-making) for them.
2. There are two ways to object to a proposed relocation of child:
 - you can send the person who is proposing the relocation an **Objection to Relocation** using the form below; OR
 - you can apply to the court for an order to stop the relocation
3. If you plan to object to the relocation, you must do so **within 30 days** after the day on which you received the Notice of Relocation.
4. If you do not make your objection within 30 days, and there is no current court order saying the move cannot happen, the relocation can go ahead without a court order on or after the date indicated in the Notice of Relocation.

5. **If you decide to object by filling out this form (rather than by making a court application), it is important that you are able to show that 1) you provided your objection to the person proposing the relocation within 30 days and 2) they actually received it.**

If no objection is made within 30 days and there is no court order stopping the relocation, the relocation can go ahead on the date in the Notice of Relocation. If you do go to court, the judge will want to see proof that you followed the requirements for objecting.

As long as you do it in writing, there are many ways that you can provide your objection. Here are a few examples:

- **Email:** If you send the objection form by email, you may be able to use the “read receipt” function in your email program. You can also ask the person to send you an email confirming they have received it. If you don’t get an email confirming they have received it, then you may want to provide your objection by another method.
- **Mail or courier:** A person working at a post office can tell you how to send a document with proof that it has been delivered. Courier services also offer options for tracking delivery. If you can’t get proof of delivery, then you may want to provide your objection by another method.
- **In person:** You can deliver the objection in person and keep a record of the date, time and address, along with the name of the person you gave the objection to. It is a good idea to have someone come with you and be a witness.

If you are not comfortable delivering it yourself in person, you could ask someone else to deliver it for you and keep a record of the delivery details, such as the date, time and address, along with how they know the person they gave the objection to.

- You can also use a **process server** to deliver the objection. A process server is someone you can pay to give documents to another person, and they will provide you with proof that they delivered the documents. If you search online for “process server” and the name of your community, you will find the contact information for your local process servers.

The way you choose to send your objection may depend on your relationship with the person who needs to get it. For example, if you are worried about being able to show a court that you provided your objection, you might want to consider using a formal process that is used for serving court documents, such as sending the objection through a process server. All provinces and territories have rules about serving court documents, and [you can find out more about these rules through their family law websites](#).

6. You cannot object to a relocation if 1) the person who provided notice of relocation is relocating without the child(ren) or 2) you have contact with the child(ren) under a contact order. However, you may want to consider whether your parenting or contact order will need to be changed.

Notes about certain sections of the form:

Part B – Information about the objection to the relocation

- Provide the name of the person who gave the Notice of Relocation and the date you received the Notice of Relocation.
- Provide the names of the child(ren) whose relocation you are objecting to. Do not include the names of other children if you are **not** objecting to their relocation.

Part C – Reasons for the objection

- Provide your reasons for objecting to the relocation.

Part D – Views on proposal for changes to parenting arrangements and/or contact arrangements

- Explain your views on the proposal to change parenting arrangements and/or contact arrangements in the Notice of Relocation. You may want to suggest alternative arrangements, but you are not required to do so.

Under the *Divorce Act*, parents must try to work out issues involving their children, including a child's possible relocation, by using out-of-court family dispute resolution processes such as negotiation and mediation, unless it would not be appropriate. It is generally better for parents to come up with their own solution, as they know their children best. A judge may make a decision that one or both parents do not like. Even if a parent objects to the relocation, it is important to keep trying to come to an agreement, where appropriate.

OBJECTION TO RELOCATION			
Part A – Information about the person objecting to the relocation			
Name:			
Address:			
Phone number:		Email address:	
Part B – Information about the objection to the relocation			
Statement of objection I received a Notice of Relocation from		On	
		Date (DD/MM/YYYY)	
I object to the relocation of the child(ren) named below.			

Part C – Reasons for the objection

Part D – Views on proposal for changes to parenting arrangements and/or contact arrangements

Name of person objecting

Date (DD/MM/YYYY)